

Jagdish Bheel vs State Of M.P. on 9 February, 2018

THE HIGH COURT OF MADHYA PRADESH BENCH GWALIOR

Division Bench:

(Rajendra Mahajan J. and Anand Pathak J.)

CRIMINAL APPEAL No.491 of 2007

1. Jagdish S/o Madho Bheel, aged about 35 years.

2. Smt. Leela Bai W/o Jagdish Bheel, aged about 30 years.

They are residents of village Mumlakhedi under Police Station Kumbhraj district Guna (MP).

Appellants

Versus

State of M.P. through Police Station Kumbhraj district Guna (M.P.).

Respondent

For appellants :- Shri A.K. Jain, learned counsel.

For respondent :- Shri Shiraz Quraishi, learned Public Prosecutor.
/State.

JUDGEMENT

(Pronounced on 9th day of February, 2018) Per: RAJENDRA MAHAJAN, J.

The accused-appellants have preferred this appeal under Section 374(2) of the Cr.P.C. being aggrieved by and dissatisfied with the judgment and order dated 01.05.2007 passed by the Additional Sessions Judge Chachoda district Guna in Sessions Trial No.320/2005 case title State of M.P. through Police Station Kumbhraj district Guna Vs. Jagdish and another, whereby they have been convicted under Sections 323 read with 34 and 302 read with 34 of the IPC and sentenced thereunder each of them to suffer in the former count rigorous imprisonment (for short "RI") for six months with a fine of Rs.1,00/- (one hundred) in default thereof to serve further RI for one month and in the latter count RI for life with a fine of Rs.2,00/- (two hundred) in default thereof to further undergo RI for one year.

2. The prosecution case as unfolded during the trial of the case before the trial Court is given below in brief:-

(2.1) On 19.09.2005 at about 12:35 pm
complainant Ramswaroop (PW-15)

accompanied by his injured father Jalam Singh (now dead) and his relative Jagdish (PW-5) made an oral FIR to ASI Roopkishore Jatav (PW-9) at Police Out-Post Sanai of Police Station Kumbhraj district Guna stating that they are the residents of village Mumlakhedi. On 29.09.2005 at about 11:00 am, he and his father Jalam Singh were in their Khet (agricultural field), which they have named Pipliya Wala Khet. At that time, accused Jagdish and his wife accused Leela Bai came into their Khet. They started cutting the standing crop of paddy. His father Jalam Singh asked them not to cultivate the crop as he is the owner of the Khet and he had sown the crop. Thereupon, they hurled filthy abuses at them. In the mean time, their daughters Bhuli Bai and Gayatri Bai also came in the Khet. They all assaulted him and his father Jalam Singh with Lathis and Hansiyas (sickles) with an intention to murder them. He sustained injuries on his head, left side of nose, both hands, left side thigh, back and other parts of his body. As a result of injuries on his head, blood starting coming out of it. His father Jalam Singh sustained injuries on his head, left elbow and other parts of his body. As a result, he fell down on the ground. Hearing their shrieks, Bharat Singh (PW-7), Mishri Lal (PW-3) and said Jagdish came to his Khet and witnessed the incident. After committing the crime, they fled away from their Khet. Some time later, his father Jalam Singh went into a coma. Roopkishore reduced his oral FIR into writing being Ex.P-19, and he registered a case against all the four accused persons for the offences punishable under Sections 294, 323, 307 and 34 of the IPC. Later, the FIR is registered at Crime No.08/2005 at Police Station Kumbhraj district Guna.

(2.2) After recording the FIR, Roopkishore sent complainant Ramswaroop and his father Jalam Singh for medico-legal-examination and treatment to the Civil Hospital Kubhraj, where Dr. A.D. Vinchurkar (PW-1) examined complainant Ramswaroop and Jalam Singh, and he gave their MLC reports Ex.P-2 and Ex.P-4 respectively. He found the injuries sustained by Jalam Singh were of serious in nature. Thereupon, he referred him for further treatment to the District Hospital Guna. There, Jalam Singh succumbed to his injuries on 30.09.2005 at about 8:30 am as per merg intimation Ex.P-24. Thereupon, the police added the offence against the accused persons under Section 302 IPC.

(2.3) On 30.09.2005, ASI K.L. Ahirwar (PW-11) held the inquest proceedings on the dead body of Jalam Singh and prepared inquest report Ex.P-13 in the presence of the witnesses. Upon his application Ex.P-23 on 30.09.2005, Dr. S.K. Jain (PW-14) held the post-mortem examination on the dead body of Jalam Singh and he gave post-mortem report Ex.P-25. According to his report, Jalam Singh died of head injuries and as such he suffered a homicidal death.

(2.4) ASI Roopkishore and Surendra Tomar (PW-

10), the SHO of Police Station Chachoda, carried out the investigation in the case. On 29.09.2005 Roopkishore prepared a spot map of the place of occurrence Ex.P-17 at the instance of Bharat Singh (PW-7) and collected blood smeared earth and simple earth vide seizure memo Ex.P-20 in the presence of witnesses Bhagwan Lal (PW-8) Ramesh (not examined). On 05.10.2005, he arrested accused Leela Bai vide arrest memo Ex.P-22 in the presence of witnesses Shyamlal (PW-4) and Ranjit (not examined). He also interrogated her in their presence and upon the information furnished by her, he prepared her disclosure statement Ex.P- 10 and on the basis thereof, he seized one Hansiya at her instance in a hut situated in her Khet vide seizure memo Ex.P-9. On 02.10.2005 Surendra Tomar arrested accused Jagdish in the presence of Gangaram (PW-2) and Phool Singh (not examined). Thereafter, he interrogated him in their presence and prepared his disclosure statement Ex.P-6 and on the basis thereof, he seized one Lathi at his instance in the presence of the said witnesses from a hut situated in his Khet vide seizure memo Ex.P-

7. Surendra Tomar also recorded the case diary statements of the prosecution witnesses.

(2.5) In the course of the investigation, it has been found by the police that accused Bhuli Bai and Gayatri Bai are juvenile delinquents. (2.6) Upon completion of the investigation, the police filed a charge-sheet against accused Jagdish and Leela Bai in the Court of Judicial Magistrate First Class Chachoda. Vide order dated 09.11.2005, he committed the case to the Court of Sessions Judge Guna, who had made over the case for the trial to the Court of Additional Sessions Judge Chachoda. The police filed the charge-sheet against juvenile Bhuli Bai and Gayatri Bai in the Juvenile Court Guna.

3. Learned ASJ had framed the charges against both the accused persons for the offences punishable under Sections 294, 323 read with 34 and 302 read with 34 IPC. They denied the charges framed against them and opted for trial. Thereupon, the learned ASJ put them to trial. In the examinations under Section 313 Cr.P.C., both the accused persons denied all the incriminating evidence and circumstances appearing against them in the prosecution evidence. They took the defence simpliciter of the false implication on account of old enmity arising out of land disputes. However, they had not produced any oral or documentary evidence in support of their defence.

4. Having critically and meticulously examined and appreciated the prosecution evidence on record in the impugned judgment, the learned ASJ has found both the accused persons guilty for causing the simple injuries to the complainant and committing the murder of Jalam Singh in furtherance of common intention. Upon the said findings, the learned ASJ convicted them under Sections 323 read with 34 and 302 read with 34 IPC while acquitting them under Section 294 IPC for want of evidence and sentenced them under Sections 323 read with 34 and 302 read with 34 IPC as noted in para 1 of this judgment. Feeling aggrieved by the verdict of the learned ASJ, both the accused persons filed this appeal.

5. In the course of arguments, learned counsel for the accused persons contended that Mishrilal (PW-3), Jagdish (PW-5) and Bharat Singh (PW-7) are the eye- witnesses as per the FIR Ex.P-19 and their case diary statements but they had not supported the prosecution case even a bit and the prosecution declared them hostile. Thereafter, the prosecution subjected them to gruelling and searching cross-examinations, but it failed to elicit any evidence in its favour. He submitted that the

learned ASJ convicted the accused persons upon the sole evidence of complainant Ramswaroop (PW-15), who is an interested and relative witness. Thus, the learned ASJ erred in placing the implicit reliance upon his evidence. He submitted that Investigating Officer Surendra Tomar has deposed that he had sent the blood stained clothes of deceased Jalam Singh, Lathi and Hansiya which were seized by him from the possession of accused persons namely Jagdish and Leela Bai respectively, for forensic examinations to the Forensic Laboratory, but the prosecution has not exhibited the FSL report during the trial of the case. Moreover, the report is not available on the record of the trial Court. Thus, the seizure of Lathi and Hansiya from the possessions of the accused persons do not connect them with the crime. He submitted that as per the evidence on record, accused persons are the agriculturists by occupation with rural background. Agriculturists use, in general, Lathis and Hansiyas in doing agricultural work. Therefore, the seizure of Lathi and Hansiya from the possessions of the accused persons has no evidentiary value. He submitted that Dr. A.D. Vinchurkar (PW-1) had admitted in para 4 of his cross-examination that at the time of the alleged offence, deceased Jalam Singh was aged about 60 years and that he had weak physique. He submitted that as per the evidence of Dr. A.D. Vinchurkar deceased Jalam Singh had sustained only one injury on his head and the remaining injuries he sustained on non-vital parts of his body. In the circumstance, if this Court is inclined to place implicit reliance upon the evidence of complainant Ramswaroop, then the offence committed by the accused persons falls under Section 304 (Part-II) IPC in place of 302 IPC. He submitted that accused Jagdish has been in prison since 02.10.2005, the date of his arrest. As such, he has so far been in prison for about 12 years, 3 months and a few days. He submitted that this Court has suspended the jail sentence of accused Leela Bai vide order dated 03.09.2007. He submitted that as per the record, accused Leela Bai remained in prison for about 8 months and near about 20 days including the period of judicial custody. He submitted that the accused persons are the parents of 4 children, that they are poor people and that they belong to the scheduled tribe community. In the circumstances, they be convicted and awarded jail sentence under Sections 323 read with 34 and 304 (Part-II) IPC for the period they had already undergone in jail. He submitted that the accused persons are ready to deposit the fine amounts.

6. In reply, learned Public Prosecutor submitted that as per the FIR and the other evidence on record, the incident occurred on the date of incident at about 11:30 am and complainant Ramswaroop lodged the report at about 12:35 pm having travelled 3 km from the place of occurrence to the Police Out-Post Sanai. As such, complainant Ramswaroop lodged the FIR within one hour and five minutes. Therefore, there are no possibilities of inclusion of contents of exaggerations and embellishments in the FIR. He submitted that complainant Ramswaroop suffered injuries which are proved by the medical evidence. Therefore, he is a natural witness to the incident. He submitted that the evidence of complainant Ramswaroop is wholly inspiring and reliable as there is nothing in his cross-examination to discredit his evidence. Therefore, the learned ASJ has rightly placed the implicit reliance upon his evidence nevertheless eye-witnesses namely Mishrilal, Jagdish and Bharat Singh turned hostile. He submitted that the prosecution case is based upon ocular evidence. Therefore, non-production of FSL report regarding the blood stains on the the Lathi and the Hansiya do not affect the prosecution case. After referring to the evidence of autopsy surgeon Dr. S.K. Jain, (PW-14), he submitted that he has stated that the parietal bone of the head of deceased Jalam Singh was broken into many pieces. He submitted that the place of occurrence is the Khet owned by the complainant party, and that there is no evidence on record that upon the

provocation of complainant Ramswaroop and deceased Jalam Singh, the accused persons committed the crime. On the other hand, at the time of incident they intentionally went into the Khet of the complainant party to cultivate the paddy crop illegally. He submitted that the learned ASJ has held that there is no evidence worth the name on record that there is deep rooted enmity between the complainant party and the accused persons on account of land disputes. Thus, the defence of the accused persons that they had been falsely implicated by the complainant party in the case is proved absolutely a lie. He submitted that if the aforesaid evidence are read in tendem, then the acts of the accused persons squarely fall under clause 3 of Section 300 IPC. Therefore, the learned ASJ has rightly convicted the accused persons under Sections 302 read with 34 IPC. In support of the said contention, he placed reliance upon a decision rendered by the Supreme Court in the case of Jagrati Devi Vs. State of H.P., (2010) 2 SCC (Cri) 245 = (2009) 14 SCC 771, in which the Supreme Court has made a perceptible distinction between the culpable homicide not amounting to murder and murder. Upon these submissions, he prayed that this appeal is devoid of merits and substance, therefore, it be dismissed upholding the impugned judgment of conviction and order of sentence.

7. We have given our full anxious consideration to the rival submissions made by the learned counsel for the parties at the Bar and perused the entire material on record and the impugned judgment.

8. The following points have arisen for our consideration.

(i) Whether complainant Ramswaroop sustained simple injuries on 29.09.2005, the date of incident?

(ii) Whether deceased Jalam Singh suffered a homicidal death on 30.09.2005 on account of injuries which he sustained on 29.09.2005, the date of incident?

(iii) Whether the accused persons in furtherance of common intention caused simple injuries to complainant Ramswaroop and committed murder of deceased Jalam Singh on the place of occurrence on 29.09.2005?

(iv) Conclusion.

Point 1:-

9. Dr. A.D. Vinchurkar (PW-1) has deposed that on 29.09.2005 in the Civil Hospital Kumbhraj, he medico legally examined Ramswaroop, the complainant, and found the following injuries on his person.

(1) A lacerated wound size 4cmX1cmX1cm on the middle of head.

(2) A lacerated wound size 5cmX1cmX1cm on the head behind injury No.1.

- (3) A lacerated wound size 1cmX1cmX0.5cm on the left temple behind the left eye.
- (4) A contusion with swelling size 8cmX6cm on the left elbow.
- (5) A contusion with swelling size 6cmX4cm on the back of left wrist.
- (6) Multiple abrasions and contusions size 7cmX7cm on the back.

Dr. A.D. Vinchurkar has opined that all the injuries sustained by complainant Ramswaroop were caused to him by a hard and blunt object. The injuries were approximately 12 hours old. He had advised X-ray examination of injuries No.1, 2 and 4, and the remaining injuries were simple in nature. As per the report of the radiologist on record but it is not exhibited, injuries No.1, 2 and 4 were simple in nature. He has proved MLC report of complainant Ramswaroop Ex.P-2. Upon the perusal of the cross-examination of Dr. A.D. Vinchurkar, we find that he has not been cross-examined by the defence in respect of the injuries sustained by Ramswaroop. We also find that Dr. A.D. Vinchurkar has found injuries on those part of the body of complainant Ramswaroop where he has stated in the FIR Ex.P-19 and his evidence to have sustained. Thus, there is a consistency in the evidence of complainant Ramswaroop and the medical evidence given by Dr. A.D. Vinchurkar in respect of the injuries sustained by him. We, therefore, hold that on 29.09.2005 complainant Ramswaroop sustained simple injuries.

Point 2:-

10. Dr. A.D. Vinchurkar (PW-1) has deposed that on 29.09.2005 he had medico legally examined Jalam Singh, the deceased, and noticed following injuries on his person.

- (1) A lacerated wound size 3cmX1cmX1cm on the middle of head.
- (2) Multiple abraded contusions with a lacerated wound size 6cmX5cmX1cm on the head.
- (3) Abraded contusion size 2cmX2cm on the left foot.

Dr. A.D. Vinchurkar has opined that all the three injuries were caused by a hard and blunt object. Injury No.3 was simple in nature and injuries No.1 and 2 were grievous in nature. Jalam Singh suffered all the three injuires approximately 12 hours before he was examined by him. He has also deposed that at the time of examination, Jalam Singh was in the state of unconsciousness and he had referred him to the District Hospital Guna for further treatment. He has proved MLC report of Jalam Singh Ex.P-4. Upon the perusal of cross- examination of Dr. A.D. Vinchurkar, we find that there is nothing to disbelieve his evidence. We find that in the FIR Ex.P-19, it has been mentioned that Jalam Singh sustained injuries mainly on his head. Thus, there is a consistency between the FIR and the evidence of Dr. A.D. Vinchurkar. For the said reasons, we place implicit reliance on the evidence of Dr. A.D. Vinchurkar. Therefore, we hold that Jalam Singh sustained injuries on 29.09.2005, the date of incident.

11. As per the merged intimation report Ex.P-4, Jalam Singh succumbed to his injuries on 30.09.2005 at about 8:00 am in the course of treatment in the District Hospital Guna. There is no reason to disbelieve the contents of merged intimation report.

12. Dr. S.K. Jain (PW-14) testified that on 30.09.2005, he conducted post-mortem examination on the dead body of deceased Jalam Singh and noticed following injuries.

External Injury:-

(1) A lacerated wound size 1 Inch X half Inch X bone deep on the right side of head.

(2) The right parietal bone was broken into many pieces and two pieces of bone had penetrated into the brain causing damage.

Internal Injury:-

The brain membrane was torn and the blood was coagulated thereunder.

Dr. S.K. Jain has opined that both the injuries sustained by deceased Jalam Singh were ante-mortem in nature and caused by a hard and blunt object. He has also opined that deceased Jalam Singh died of head injuries within 24 hours before the commencement of the post-mortem examination by him. As such he suffered a homicidal death. He has proved post-mortem report Ex.P-25. The defence has cross examined him in brief and there is nothing to disbelieve his evidence and opinion appearing in his examination-in-chief with regard to the nature of death of him. We, therefore, hold that deceased Jalam Singh suffered a homicidal death.

Point 3:-

13. Complainant Ramswaroop (PW-15) has stated that at the time of incident, he and his father Jalam Singh were in their Khet called as Pipliya Wala Khet. His father was grazing their cows and he was cutting grass on the field ridge of the Khet. Accused Jagdish with Lathi, his wife accused Leela Bai with Hansiya and their daughters Gayatri Bai and Bhuli Bai came to their Khet. Accused Jagdish and accused Leela Bai inflicted injuries with the weapons they had with them and Gayatri Bai and Bhuli Bai committed Marpeet with them. At the time of incident, Bharat Singh (PW-7) and Jagdish (PW-5) were in their Khets. They witnessed the incident from their Khets and came to their rescue. After the incident, he went to Police Out-Post Sanai and lodged the FIR Ex.P-

19. ASI Roopkishore Jatav (PW-9) has stated in his evidence that he truly recorded FIR Ex.P-19 upon the dictation of complainant Ramswaroop.

14. From the perusal of FIR Ex.P-19, we find that the incident occurred on 29.09.2005 at about 11:30 am and complainant Ramswaroop lodged the FIR on the same day at about 12:35 pm and the distance between the place of occurrence and the Police Out-Post is about 3km. On the aforesaid

facts, we may say that complainant Ramswaroop had lodged the FIR without delay in natural way. Thus, there is no possibility of exaggeration, embellishment and improvement in the FIR in respect of the incident even a bit. We also find that there is a consistency in the contents of the FIR and the evidence of complainant appearing in his examinations-in-chief. Upon the perusal of his cross-examination, we find that the defence has failed to bring any material discrepancy, inconsistency and contradiction among the contents of FIR, his evidence and case diary statement.

15. Complainant Ramswaroop has admitted in para 6 of his cross-examination that he and his father have long standing land disputes with the accused persons. However, there is no evidence on record that the Khet, the place of occurrence, belongs to the accused persons or they have rightful possession over it or complainant Ramswaroop and his father have forcible possession over it at the time of incident. On the other hand, complainant Ramswaroop has categorically stated that they have rightful possession over the Khet. In view of the aforesaid evidence, no right of the private defence of the body and a property had been accrued to the accused persons in terms of Section 97 IPC.

16. In the course of arguments, learned counsel for the accused persons had challenged the truthfulness of the evidence of complainant Ramswaroop on the ground that he is an interested and relative witness because he has land disputes with the accused persons as per his own admission. In view of the settled legal position there is a palpable distinction between an interested witness and the relative witness. An interested witness is one who is highly interested in the conviction of an accused because of his personal prejudices and enmity with him, whereas the relative witness is one who is related to the victim either by blood or uterine. It is a general perception that a relative witness will not shield a real accused and implicate an innocent person in the case of murder of close kin. It is well settled in law that where the prosecution case rests upon the evidence of relative witness, the Court shall scrutinize his evidence with care as a rule of prudence and not as a rule of law and the relationship between the witness and the victim is no ground to discredit the evidence of such witness. We have already held that complainant Ramswaroop received the injuries on 29.09.2005, the date of incident and which are not self-inflicted. It is also a settled law that if a witness sustained injuries in the incident, it is an in-built guarantee of his presence at the scene of crime and it is unlikely that he would spare his actual assailant(s) in order to falsely implicate a person with whom he has enmity. In this respect, a reference may be made to the decisions reported in *Arjun and another Vs. State of Chhattisgarh*, (2017) 3 SCC 247, *Bramhaswaroop and another Vs. State of U.P.*, (2011) 6 SCC 288, *Vishnu and others Vs. State of Rajasthan*, (2009) 10 SCC 477, *Seeman @ Veeranam Vs. State*, 2005 Supreme Court Cases (Cri) 1893 and *Dalip Singh Vs. State of Punjab*, AIR 1953 SC 364. We have already held that we have not found any discernible contradiction, discrepancy and inconsistency in the FIR lodged by complainant Ramswaroop, his evidence and his case diary statement. Therefore, the evidence of complainant Ramswaroop cannot be disbelieved just on the ground that he happens to be the son of deceased Jalam Singh. Insofar as enmity on account of the land disputes between complainant Ramswaroop and his father on one side and the accused persons on the other is concerned, enmity is a double-edged sword, while it can be a basis for false implication, it can also be a basis for the crime. We have already held that the complainant and his father had rightful possession at the time of incident in the Khet where the incident occurred and that no right of private defence had been accrued to the accused persons in

terms of Section 97 IPC. Therefore, the evidence of complainant Ramswaroop cannot be disbelieved only on the ground that he had land disputes with the accused persons at the time of incident. On the hand, it is established that the accused persons had committed the crime on account of their land disputes with the complainant party. Thus, the motive behind the crime is also writ large.

17. From the aforesaid critical and close analysis of evidence of complainant Ramswaroop, we find his evidence is wholly inspiring and reliable and he is a witness of truth.

18. According to the case diary statements of Mishrilal (PW-3), Jagdish (PW-5) and Bharat Singh (PW-7), the FIR and the evidence of complainant Ramswaroop, they are the eye-witnesses to the incident. Mishrilal has supported the prosecution case to the extent that he saw complainant Ramswaroop and his father Jalam Singh in injured conditions in their Khet. His said evidence at least proves that the incident occurred in the Khet of complainant Ramswaroop. However, he has deposed that he had not seen a person (s) who had caused them injuries. Jagdish and Bharat Singh have deposed that they had not seen the incident. The prosecution has declared them hostile and subjected them to cross-examinations in terms of Section 145 of the Evidence Act. However, the prosecution has failed to elicit evidence in support of its case. As we have already held that the evidence of complainant Ramswaroop is wholly inspiring and reliable, therefore, the denial of the prosecution case by these witnesses in their evidence does not affect the prosecution case at all.

19. Roopkishore Jatav (PW-9) has deposed that upon the information furnished by accused Leela Bai in the course of her interrogation, he prepared her disclosure statement Ex.P-10 and thereafter he seized at her instance one Hansiya vide per seizure memo Ex.P-9. Surendra Tomar (PW-10) has deposed that on the basis of the disclosure statement Ex.P-6 made by accused Jagdish before him, he seized a Lathi at his instance vide seizure memo Ex.P-7 and found some blood stains thereon. However, the independent witnesses namely Shyamlal (PW-4) and Ganga Ram (PW-2) to the disclosure statements and seizure memos of accused Leela Bai and accused Jagdish respectively have not supported their evidence. But, there is nothing in the cross-examinations of both the investigating officers of the case to disbelieve their evidence. Surendra Tomar has stated that he had sent the seized Lathi and Hansiya for forensic examinations in addition to other articles to the Forensic Laboratory. But, the report of the laboratory had not been produced by the prosecution in the course of trial as per the record. We are of the views that when Surendra Tomar has stated in his evidence to have sent the said articles to the Forensic Laboratory, therefore, it was the duty of the learned ASJ to insist upon the prosecution to produce the same for the cause of justice but he lapsed. However, the non-production of the FSL report is not fatal to the prosecution in view of the wholly reliable evidence of complainant Ramswaroop supported by the medical evidence.

20. Dr. A.D. Vinchurkar (PW-1) has admitted in para 4 of his cross-examination that deceased Jalam Singh was a 60 years old man and that he was physically weak. Having drawn our attention towards the said evidence, learned counsel for the defence had argued that deceased Jalam Singh died of the said reason. Therefore, it is not a case of murder of him. Dr. S.K. Jain (PW-14), who had conducted the post-mortem examination, has stated in his evidence that the parietal bone of deceased Jalam Singh was broken into many pieces and two pieces of them had penetrated his brain causing his death due to a head injury. The fact of broken of the parietal bone in many pieces proves

that the accused persons assaulted him with an intention to murder him. In our considered opinion, even a healthy and young person in such a medical condition would have died. For the said reason, we outright reject the contention that deceased Jalam Singh had died of a head injury on account of his old age, therefore, the offence committed by the accused persons falls under Section 304 (Part-II) IPC in place of Section 302 IPC. On the other hand, placing reliance upon the law laid down in Virsa Singh Vs. State of Punjab, AIR 1958 SC 465, we hold that the instant case is covered under Clause 3 of Section 300 IPC.

21. Upon the aforesaid meticulous and critical examination of the evidence on record, we hold that it is proved beyond any kind of reasonable doubt that the accused persons in furtherance of common intention had caused simple injuries to complainant Ramswaroop and murdered his father Jalam Singh.

Point 4:-

22. In *Mano Dutt Vs. State of U.P.*, (2012) 4 SCC 79, *Munna @ Puran Yadav Vs. State of M.P.*, 2009 (2) J.L.J. 100 SC, *Badri Vs. State of Rajasthan*, AIR 1976 SC 560 and *Vadivelu Thevar Vs. State of Madras*, AIR 1957 SC 614, the Supreme Court held that the Court can convict an accused on the statement of a sole witness even if he was a relative of the deceased. Therefore, the learned ASJ has rightly convicted the accused persons for the offences under Sections 323 read with 34 and 302 read with 34 IPC on the sole evidence of complainant Ramswaroop.

23. Upon the perusal of para 47 of the impugned judgment, we find that the learned ASJ has awarded Rs.2,00/- (two hundred) fine sentence to each of the accused persons under Section 302 read with 34 IPC and in default thereof to suffer RI for one year, whereas the learned ASJ has awarded the fine sentence of Rs.1,00/- (one hundred) each of the accused persons under Sections 323 read with 34 IPC and in default of payment of fine to suffer RI for one month. Thus, it is crystal clear that the learned ASJ has awarded disproportionate default jail sentence to the accused persons in the aforesaid Sections of law. Therefore, in the interest of justice we reduce the default jail sentence under Sections 302 read with 34 IPC from a period of one year to a period of two months.

24. For the foregoing reasons and discussions, we ultimately reach the conclusion that this appeal is devoid of merits and substance. Therefore, we dismiss this appeal upholding the impugned judgment of conviction and order of sentence with a minor modification that the default jail sentences awarded to the accused persons under Sections 302 read with 34 IPC will be for a period of two months in place of a period of one year.

25. Vide order dated 03.09.2007, this Court has suspended the jail sentence of accused Leela Bai. We cancel her bail-bonds and direct her to surrender before the Court of Additional Sessions Judge Chachoda district Guna within two months from the date of this impugned judgment, failing which the incumbent ASJ of the Court shall take all necessary steps to secure her arrest and to send her to jail for undergoing the jail sentence, in case of her abscondence, he shall proceed against her surety in accordance with law.

(Rajendra Mahajan)

(Anand Pathak)

Judge

Judge

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